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General Comment

I am a literary agent, meaning that my job is to work closely with authors, secure publishing contracts on their behalf, and manage their careers. In books, authors retain the copyright, as opposed to other fields where the copyright is always signed over to the publisher, distributor, employer, etc. Copyright is the most precious and valuable property my clients have, and the inviolability of that copyright is the bedrock of the American publishing industry-- and the American publishing industry is a global juggernaut, setting trends and shaping the cultural conversation worldwide.

Generative AI companies have trampled authors' right of copyright with no recourse, and they are making blatant attempts to infringe on authors' ability to exploit all avenues in profiting off their valuable creative labor (i.e., by flooding the market with shoddy and incoherent knockoffs). This is highly detrimental to one of the industries in which we are globally dominant, for no benefit: readers don't want to read AI output, and AI-generated text is widely met with revulsion, frustration, and mockery.

AI and machine learning are highly valuable when used to analyze data in a way that humans cannot, for example in assisting doctors in analyzing data from scans. When AI is used to replace human creativity, it is both illegal and embarrassingly low-quality. American AI policy must protect the copyright of American creatives; AI companies should accept that their smash and grab hasn't paid off, and focus on applications of their technology that actually add value.